



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing ten judgments on Tuesday 6 June 2017 and 37 judgments and / or decisions on Thursday 8 June 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 6 June 2017

[Y v. Switzerland \(application no. 22998/13\)](#)

The applicant, Y, is a Swiss journalist who was born in 1965 and lives in Switzerland.

The case concerns the fine he was ordered to pay for reproducing in an article information covered by the secrecy of a judicial investigation.

In January 2009 Y wrote an article in a weekly newspaper concerning the criminal proceedings against a “leading property manager” who was being prosecuted on charges of paedophilia. The article took the form of an interview with the father of one of the alleged victims. In it, the journalist criticised the fact that the accused had been released, citing extracts from the prosecution appeal against the decision of the investigating judge to end the accused’s pre-trial detention. The article went on to describe the alleged facts in detail.

Criminal proceedings were brought against Y at the initiative of the public prosecutor for publishing documents covered by the secrecy of a judicial investigation. The public prosecutor ordered him to pay a criminal fine of 5,000 Swiss francs (CHF – approximately 3,850 euros (EUR) at the relevant time). Y appealed and was sentenced by a District Court judgment of 15 June 2011 to payment of a fine of CHF 5,000. He lodged an unsuccessful appeal against that judgment with the Criminal Appeals Division of the Vaud Cantonal Court. He subsequently lodged a criminal-law appeal, which was dismissed by the Federal Court in a judgment of 27 September 2012.

The applicant maintains that the order for him to pay a criminal fine constituted disproportionate interference with his right to freedom of expression under Article 10 of the European Convention on Human Rights.

[Erdoğan Kurt and Others v. Turkey \(no. 50772/11\)](#)

The applicants, Erdoğan Kurt, Nursen Kurt and their daughter, Duru Kurt, are Turkish nationals who were born in 1974, 1975 and 2003 respectively and live in Ankara. Duru Kurt underwent two high-risk surgical operations which left her with serious neurological after-effects.

In 2004 Duru began receiving treatment for heart problems in Sami Ulus children’s hospital. The doctors decided to operate and her father signed a consent form which set out the potential risks. Following a decision by the hospital’s medical board, a further operation was performed and the girl’s father signed an identical form. On 11 July 2007 the medical board of Dışkapı children’s hospital in Ankara diagnosed the child with severe and incurable delayed psychomotor development caused by hypoxic-ischaemic encephalopathy, and assessed her level of disability at 92%. Her parents lodged a complaint against the surgeons.

The report issued following an internal investigation carried out at the request of the Governor’s Office stated that the child was suffering from a very serious congenital heart condition, and

concluded that no errors had been committed by the medical team during the operations. In September 2008 the public prosecutor's office discontinued the proceedings.

In May 2008 the applicants brought an action against the doctors in the Ankara Court of First Instance. The court appointed a panel of experts, which submitted its report in July 2009. According to the report, the child had been suffering from a very serious and rare congenital disease known as Bland-White-Garland syndrome. The parents had signed a consent form prior to the two operations, and the report concluded that the doctors had not committed any medical or surgical error. The applicants contested the report, which they considered to be insufficient. The Court of First Instance dismissed their request for a second expert medical report. The applicants lodged an appeal, which was dismissed in April 2010. In October 2010 the Court of Cassation also dismissed their application for rectification.

Relying on Articles 2 (right to life), 6 (right to a fair hearing) and 13 (right to an effective remedy), the parents hold the authorities responsible for the neurological after-effects suffered by their daughter. They also maintain that they had no effective remedy by which to assert their rights, and that the civil proceedings were ineffective.

[Sinim v. Turkey \(no. 9441/10\)](#)

The applicant, Arzum Makbule Sinim, is a Turkish national who was born in 1979 and lives in Istanbul. Ms Sinim complains of the authorities' alleged failure to conduct an effective criminal investigation into her husband's death.

Mr Sinim died in 2006 as a result of a road traffic accident, after the truck in which he was travelling as a passenger collided with another vehicle and caught fire. It later transpired that the truck, which Mr Sinim had been renting along with a transport company, had not only been transporting his own goods, but also inflammable liquid. However, according to certain expert reports, the truck was not properly equipped to carry such goods, having regard to the requirements set out in the law for the transportation of dangerous goods: the truck had not had an electrical system to prevent short circuiting and fire, it had borne no warning signs, and the driver had not been trained in the transportation of dangerous goods. The authorities decided not to pursue criminal charges against the alleged producer of the inflammables or the transport company. Ms Sinim brought civil proceedings against the alleged wrongdoers in 2007, but these are still pending.

Relying in particular on Article 2 (right to life), Ms Sinim complains of the authorities' alleged failure to conduct an effective criminal investigation, including the responsibility of those who had knowingly disregarded the relevant regulations on transportation of dangerous goods and thus her husband's right to life.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Balkov v. Russia (no. 33690/12)

Barsukov v. Russia (no. 51252/09)

Nikolayevy v. Russia (no. 49529/10)

Pichugin v. Russia (no. 38958/07)

Ratkin v. Russia (no. 24625/05)

Urukov v. Russia (no. 20489/07)

Yugay v. Russia (no. 29769/09)

Thursday 8 June 2017

[M.M. v. Bulgaria \(no. 75832/13\)](#)

The applicant, M.M., is a stateless person of Palestinian origin. He was born in 1991 in Damascus and lives in Sofia.

M.M. arrived in Bulgaria on 22 July 2008. After rejecting his two applications for refugee status, the Refugees' Agency granted him humanitarian status. He was issued with a residence permit.

By an order of 13 July 2013 the National Security Agency withdrew M.M.'s residence permit and ordered his expulsion, together with a ten-year entry ban, on the grounds that his presence in the country posed a threat to national security. A separate order was made for his placement in administrative detention. He was placed in the Busmantsi temporary detention centre for aliens near Sofia. The Supreme Administrative Court ruled that the appeals lodged by the applicant against these orders were inadmissible as being out of time.

In November 2013 M.M. was transferred to Sofia Airport and put on a flight bound for Lebanon. As the Lebanese authorities refused him entry he was sent back to Bulgaria. On his arrival in Sofia he was detained at the airport. On 4 December 2014 the Court, after receiving a request for interim measures under Rule 39 of the Rules of Court, decided to indicate to the Bulgarian Government that they should not expel the applicant to Syria for the duration of the proceedings before it.

On 14 December 2013 the National Security Agency stayed execution of the expulsion measure and ordered M.M.'s placement in administrative detention. M.M. applied to the Sofia Administrative Court, arguing that his detention was no longer justified since execution of the expulsion measure had been stayed. The Administrative Court upheld his detention, but that judgment was quashed by the Supreme Administrative Court. The Administrative Court ordered M.M.'s release.

In parallel with these proceedings, the Sofia Administrative Court ordered the extension of the applicant's detention for a further six months. He was therefore released on 16 December 2014.

Relying on Articles 2 (right to life) and 3 (prohibition of inhuman or degrading treatment) of the Convention, the applicant maintains that his life would be in danger and he would be at risk of inhuman and degrading treatment if he were expelled to his country of origin, Syria. Under Article 13 (right to an effective remedy), he complains of the lack of an effective remedy in Bulgarian law in respect of his complaints under Articles 2 and 3. Relying on Article 5 § 4 (right to a speedy decision on the lawfulness of detention), he alleges that his appeal against the lawfulness of his placement in detention in December 2013 was not examined "speedily".

[National Turkish Union and Kungyun v. Bulgaria \(no. 4776/08\)](#)

The applicants are the association the National Turkish Union, and Menderes Mehmet Kungyun, a Bulgarian national who was born in 1950 and lives in Kazanlak. Mr Kungyun, a founder member and president of the association, complains of the Bulgarian authorities' refusal to register the association.

In 2006 Mr Kungyun announced his intention to form an association dedicated to promoting the rights of the Muslim minority in Bulgaria. Following his announcement several hostile articles appeared in the press, criticising the association's aims and claiming variously that the applicant wanted to create an ethnic Turkish party and that he was receiving funding from secret services abroad. In May 2006 Mr Kungyun and five other founder members applied to the Plovdiv Regional Court to have the association registered. The court refused their application on the grounds that one of the association's declared aims was political. Under the Constitution, only political parties were allowed to conduct political activities. The court also observed that commercial activities could not feature among the primary aims of a non-profit association. Lastly, the court noted a lack of precision in the statute concerning the association's representative bodies.

Mr Kungyun appealed. The Court of Appeal upheld the original judgment and observed that an association's name should not be misleading or contrary to public morals. The name "National Turkish Union" referred to the existence of a Turkish nation in Bulgaria and implied a separatist objective. Mr Kungyun appealed on points of law. On 10 July 2007 the Supreme Court of Cassation dismissed his appeal and upheld the Court of Appeal judgment.

The applicants allege that the refusal to register the association "National Turkish Union" constitutes a breach of their rights under Article 11 of the Convention (freedom of assembly and association).

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Leitner v. Austria (no. 55740/10)

Schwab v. Austria (no. 1068/12)

Ognyanov v. Bulgaria (no. 20981/09)

Palfreeman v. Bulgaria (no. 59779/14)

Tsankov v. Bulgaria (no. 33221/15)

Hamesevic v. Denmark (no. 25748/15)

Besenyéiné Horváth v. Hungary (nos. 36581/13, 42766/13, 65511/16, 65514/16, 65516/16, 65518/16 and 65528/16)

Feczer and Others v. Hungary (nos. 69101/12, 24240/13, 31926/13, 41875/16, 64890/16, and 64894/16)

Spitzer v. Hungary (no. 22572/13)

Silkāne and Others v. Latvia (nos. 70890/13, 71499/13, 24333/14, 35916/14, 64203/14 and 16590/15)

M.M. and Others v. the Netherlands (nos. 15993/09, 26268/09, 33314/09 and 53926/09)

Ancuța v. Romania (no. 54552/15)

Atomei and Others v. Romania (nos. 57151/14, 9153/15, 15544/15, 48552/15 and 55632/15)

Cârstina and Others v. Romania (nos. 61902/12, 55556/13, 58178/14, 39257/15, and 517/16)

Condrea and Others v. Romania (nos. 79720/12, 32946/14, and 39902/15)

Lența and Others v. Romania (nos. 62662/14, 7042/16, 40627/15, 50316/15, 1446/16, 1633/16, 9872/16, 20016/16, 20659/16, and 27084/16)

Mihnea v. Romania (no. 18119/15)

Mitală and Others v. Romania (nos. 54357/14, 1845/15, and 62217/15)

Mițaru and Coman v. Romania (nos. 1292/16 and 2391/16)

Nazare v. Romania (no. 72453/14)

Purluca and Others v. Romania (no. 57260/15, 12134/16, and 31373/16)

Toader and Others v. Romania (nos. 6177/15, 8707/15, 15871/15, 50532/15, 2505/16, 4400/16, 8909/16, 12866/16, 18970/16 and 21292/16)

Karmannikov v. Russia (no. 2418/16)

Volkov v. Russia (no. 44137/12)

Yakovleva and Others v. Russia (nos. 17742/08, 64862/13, 7992/15, 52441/15, 53052/15, 8994/16, 9758/16, 12094/16 and 26644/16)

Koky v. Slovakia (no. 27683/13)

Pasa Bayraktar and Aydıncaya v. Turkey (no. 38337/12)

Pekunlu v. Turkey (no. 25832/14)

Babartsev v. Ukraine (no. 25645/15)

Boyko v. Ukraine (no. 20773/09)

Burma and Others v. Ukraine (no. 15712/13 and 207 other applications)

Ovechkina and Others v. Ukraine (nos. 21357/08, 1335/13, 13910/13, 2466/16, and 42891/16)

Perkovska and Others v. Ukraine (nos. 37398/08, 48487/09 and 36816/15)

Syrota and Others v. Ukraine (no. 14257/10)

Volchkova and Others v. Ukraine (nos. 14062/05, 6995/06, 43726/13, 47788/13, 66724/13, and 2164/14)

This press release is a document produced by the Registry. It does not bind the Court. Decisions, judgments and further information about the Court can be found on www.echr.coe.int. To receive the Court's press releases, please subscribe here: www.echr.coe.int/RSS/en or follow us on Twitter [@ECHRpress](https://twitter.com/ECHRpress).

Press contacts

echrpess@echr.coe.int | tel: +33 3 90 21 42 08

Tracey Turner-Tretz (tel: + 33 3 88 41 35 30)

Denis Lambert (tel: + 33 3 90 21 41 09)

Inci Ertekin (tel: + 33 3 90 21 55 30)

George Stafford (tel: + 33 3 90 21 41 71)

The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.